

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No. 18-07

MARINE TRANSPORT LOGISTICS, INC.

COMPLAINANT

v.

CMA CGM (AMERICA) LLC

RESPONDENT

JOINT STATUS REPORT AND JOINT MOTION FOR EXTENDED STAY

Complainant Marine Transport Logistics, Inc. (“MTL”) and Respondent CMA CGM (America) LLC (“CMA”) hereby jointly submit this Joint Status Report.

Though CMA and MTL remain engaged in active settlement discussions, logistical concerns regarding local requirements overseas are hindering progress. Though significant progress in settlement discussions was accomplished since the status report submitted by the Parties to this Honorable Court in March, CMA CGM’s local agent in Libya recently raised concerns regarding whether the Changes of Destination and/or Re-exports of these used auto shipments requested by MTL as part of settlement discussions may be imported into Libya. The Parties continue to work towards settlement in good faith, as well as work with overseas agents in attempts to resolve this matter. Given the lack of progress in settlement negotiations, despite numerous attempts to reach a settlement that’s agreeable for both Parties, CMA also

intends to proceed with a Motion to Dismiss. MTL will likely file a cross-motion once CMA files its Motion to Dismiss.

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Respectfully submitted,

DA/signed electronically

Draughn Arbona

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Attorney for Respondent CMA CGM (America) LLC

CERTIFICATE OF SERVICE

I hereby certify that I have this day served a true and correct copy of the foregoing Joint Motion to Stay Proceedings upon all parties identified below via electronic mail:

Mr. Garry Pogil
112 West 34 Street, 18th Floor
New York, NY 10120
Attorney for Complainant

This 6th day of June 2019.

DA/signed electronically

Draughn Arbona
Counsel for Respondent